

FEDERAL MARITIME COMMISSION

DOCKET NO. 14-06

**SANTA FE DISCOUNT CRUISE PARKING, INC. d/b/a
EZ CRUISE PARKING; LIGHTHOUSE PARKING,
INC.; and SYLVIA ROBLEDO d/b/a 81ST DOLPHIN
PARKING**

v.

**THE BOARD OF TRUSTEES OF THE GALVESTON
WHARVES and THE GALVESTON PORT
FACILITIES CORPORATION**

**RESPONDENT THE BOARD OF TRUSTEES OF THE GALVESTON
WHARVES' RESPONSE TO COMPLAINANTS' AMENDED BRIEF ON
LIMITED REPARATIONS ISSUE ON REMAND**

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**RESPONDENT THE BOARD OF TRUSTEES OF THE GALVESTON
WHARVES' RESPONSE TO COMPLAINANTS' AMENDED BRIEF ON
LIMITED REPARATIONS ISSUE ON REMAND**

I. INTRODUCTION

Respondent The Board of Trustees of the Galveston Wharves (“Wharves” or “Respondent”) hereby submits its Response to Complainants Santa Fe Discount Cruise Parking, Inc. d/b/a EZ Cruise Parking (“EZ Cruise”); Lighthouse Parking, Inc. (“Lighthouse”); and Sylvia Robledo d/b/a 81st Dolphin Parking (“81st Dolphin”) (collectively “Complainants”)¹ Amended Brief on Limited Reparations Issue on Remand, dated June 30, 2021, pursuant to the Order Requiring Joint Status Report (“ORJSR”) entered by the Administrative Law Judge (“ALJ”) April 20, 2021 and as set forth in the parties’ Joint Status Report dated May 24, 2021². This brief is submitted subject to and without waiving or limiting Respondents’ timely filed Verified Petition for Reconsideration and Motion for Stay of Proceedings, filed on June 1, 2021 (“Petition for Reconsideration”), which remains pending before the Commission, and the other pleadings and argument filed with the Commission regarding this dispute.

¹ As Complainants’ note on footnote 1 of their Amended Brief filed on June 30, 2021, the Order on Initial Decision on Remand found that the claims of Lighthouse were denied due to their failure to appeal and that the Complainants’ claims against the Galveston Port Facilities Corporation were similarly dismissed. Respondents assert that they should be found to be the prevailing party, along with the Galveston Port Facilities Corporation, regarding such dismissed claims and are entitled to attorney fees regarding those dismissed claims. Respondents timely filed their Verified Petition Regarding Attorneys fees with the Commission on March 14, 2017, which remains pending.

² On or about July 23, 2021, EZ Cruise, Lighthouse and the Wharves entered into settlement agreements regarding all claims between them in this proceeding and in an ancillary Federal District court lawsuit under Case No. 3:14-cv-00206, *Santa Fe Discount Cruise Parking, Inc. et al v. The Board of Trustees of the Galveston Wharves et al*, In the United States District Court for the Southern District of Texas (the “Ancillary Litigation”). EZ Cruise, Lighthouse and the Wharves filed a Joint Petition with the Commission requesting approval of this settlement on July 26, 2021. 81st Dolphin has not settled, and its dispute with the Wharves remains pending. The Wharves’ arguments herein concerning EZ Cruise are offered to preserve Wharves’ while the Joint Petition remains pending and may be disregarded if the Joint Petition is granted.

I. A REPARATIONS RULING WOULD BE PREMATURE

As noted above, Respondents' Petition for Reconsideration remains pending before the Commission. Any ruling on the issue of reparations would be subject to the Commission's determination of the Petition for Reconsideration. If that Petition is granted, any decision issued on reparation would likely be rendered moot. Therefore, in the interest of judicial economy and to avoid wasting judicial resources, any ruling on reparations should be postponed until the Commission has reviewed and ruled upon Respondent's Petition. Respondents' argument contained in their Petition for Reconsideration are incorporated herein by reference and made a part of this brief³.

II. REPARATIONS CALCULATIONS

a. Complainant's Calculations of Fees Paid from June 2011 through July 2014.

Complainants proffer a net amount, including a prorated sum for June 2011, they claim were paid by them during the relevant reparation time period as follows:

EZ Cruise	\$105,624.00
81 st Dolphin	\$17,776.00

Without waiving any rights to assert that these amounts are not actually due to Complainants, Respondent has no alternative calculation or formulation regarding these figures. Rather, Respondent contends that these amounts are excessive and inequitable for the reasons set out hereafter.

³ These include, but are not limited to, the fact that Complainants never properly plead the issue of rates charged to limousines in their complaint which factored in the rulings by Judge Guthrie.

b. Complainants Are Not Due the Full Reparation Amount Claimed due to an Error in the Commission's Rulings

As detailed in Respondents' Petition for Reconsideration, the Commission incorrectly found that the Port did not correct the issue regarding the billing of limousines for "months" until August 2014. OADR at 30-31 and n. 14. This is factually incorrect. The Transportation Study referenced in the Commission's OADR which discovered this error was completed in May of 2014. However, the Wharves' billing (included in Complainants' Appendix) shows these charges were charged access fees beginning in April of 2014:

Abiding Limo charged on 7/9/2014 (Compl. App. 001699; BOT 017192 – 93)

Action Limo charged on 7/9/2014 (Compl. App. 001702; BOT 017194 – 201)

AIM Limo Access charged on 7/9/2014 (Compl. App. 001714; BOT 017206 – 10)

Avanti Transport charged on 4/10/2014 and 7/9/2014 (Compl. App. 001731; BOT 017223 – 27)

Blackhorse Limo charged on 6/19/2014 (Compl. App. 001741; BOT 017233 – 43)

Black Tie Limo charged on 6/19/2014 (Compl. App. 001745; BOT 17237-17239)

Colony Limo charged on 6/19/2014 (Compl. App. 001786; BOT 017278 – 81)

Devine TownCar & Limo charged on 6/19/2014 (Compl. App. 001805; BOT 017297 – 303)

Galveston Limo charged on 5/2/2014 (Compl. App. 001831; BOT 017336)

Merlo's Limo's charged on 7/9/2014 (Compl. App. 001878; BOT 017370 – 87)

Superior Limo charged on 6/19/2014 (Compl. App. 001946; BOT 017438 – 52)

Awarding reparations for the months of April through July of 2014 is not factually based and provides Complainants with a windfall. The following payments should be reduced as follows:

**April to July 2014 Payments To be Deducted from
Reparations**

2014 Payments to Port	81st Dolphin	EZ Cruise
April	\$768.00	\$3,040.00
May	\$768.00	\$3,040.00
June	\$768.00	\$3,040.00
July	\$768.00	\$3,040.00
Total	\$3,072.00	\$12,160.00

Resp. App. 001567 through 001570 (BOT_015782 through BOT_015785), and BOT_016185 through BOT_016188 attached to Complainant's Brief. The resulting deductions and net reparation calculations, subject to Respondents' briefs and Petition for Reconsideration on file, will be as follows:

	EZ Cruise Calculation	81st Dolphin
Brief	\$ 105,624.00	\$ 17,776.00
Deduction	\$ (12,160.00)	\$ (3,072.00)
Net	<u>\$ 93,464.00</u>	<u>\$ 14,704.00</u>

c. The Issue of Offsetting Amounts owed by 81st Dolphin Needs to Be Resolved to Avoid A Windfall

As noted in Respondents’ Petition for Reconsideration, the parties have been subject to an Agreed Interim Order in the Ancillary Litigation filed in Federal District Court, which was entered shortly after the filing of this Proceeding. At that time, Complainants were paying Access Fees per Respondent’s Tariff based on their status as “Off Port Parking Users” – i.e., paying monthly fees based on the number of parking spaces in their lots. Complainants filed this Proceeding after Respondent amended its Tariff to increase those rates. The Agreed Interim Order⁴ required Complainants to (1) pay monthly access fees based on the pre-existing rates directly to Respondent, and (2) pay the amount owed under the disputed rate increase into the District Court’s Registry, on a monthly basis.

Shortly thereafter, Respondent again modified its Tariff to eliminate “Off Port Parking Users” as a separate category and charging monthly access fees based on the number of spaces in their lots. Rather, *all* persons, including private parking lot owners like Complainants, were charged access fees on the same “per-trip” basis each time their vehicles accessed Respondent’s Cruise Terminals. However, the Agreed Interim Order was never changed. During this time 81st Dolphin was subject to the new access fee regime

⁴ See attached Exhibit 1.

based on a “per access” basis. These amounts are outside of the period set by the Commission as the “reparations period” involved in this remand and thus are part of charges which are owed to Respondent by 81st Dolphin. During this time period covered by the Agreed Interim Order, 81st Dolphin’s vehicles accessed Respondent’s Cruise Terminals so many times that what 81st Dolphin now owes Respondent in Access Fees greatly exceeds what is being held in the Federal Court Registry. The excess amount owed by 81st Dolphin is shown in the following table:

Federal District Court Registry Total vs. Access Fees Owed to the Wharves			
Plaintiff	Registry Total	Access Fees Owed to the Wharves	Difference
81ST DOLPHIN	\$196,697.52 ⁵	\$370,750.00 ⁶	\$174,052.48

81st Dolphin is now seeking an inequitable windfall to have Respondent pay it \$17,776.00 in “reparations” while it owes Respondent \$370,750.00, of which \$196,697.52 is in the registry of the federal district court. 81st Dolphin should not receive such an inequitable windfall and a proper offset should be allowed if 81st Dolphin prevails on its reparations claim.

d. Decals

As to the issue of decals, the OADR stated the following

The ALJ may also consider whether and how to pro-rate June 2011 and the extent to which decal fees affect the reparations calculation – while taxis and limousines

⁵ See registry payment schedule in Exhibit 2.

⁶ See invoice schedule in Exhibit 3.

did not pay per-trip or per-space access fees under the tariffs, they did pay decal fees.

OIDR at 40. As Complainants state in their Brief, limousines and Complainants were both charged for decals. As both paid such fees it is unclear as to why the Commission made this suggestion. Respondents are simply not entitled to any reparations based on “decal fees.”

III. CONCLUSION

For all the foregoing reasons, Respondent respectfully requests that the honorable Administrative Law Judge abate ruling on reparations pending a ruling by the Commission on Respondent’s Petition for Reconsideration, alternatively, adopt Respondent’s arguments set out in this Brief, and deny Complainants’ the reparations requested in their Brief. .

DATED: July 30, 2021

Respectfully submitted,

/s/ Anthony P. Brown

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**ATTORNEYS FOR RESPONDENT THE
BOARD OF TRUSTEES OF THE
GALVESTON WHARVES**

CERTIFICATE OF SERVICE

I certify that a copy of this motion was served on all counsel of record below by electronic mailing on July 30, 2021:

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**Counsel for Santa Fe Discount Cruise Parking, Inc. d/b/a EZ Cruise
Parking; Lighthouse Parking, Inc.; And Sylvia Robledo d/b/a 81st
Dolphin Parking**

/s/ Anthony P. Brown
Anthony P. Brown

Exhibit 1 – Agreed Interim Order

C.A. NO. 3:14-cv-00206

FINDINGS

1. On or about June 16, 2014, Plaintiffs filed a Verified Complaint with the United States Federal Maritime Commission, alleging that amendments to Board of Trustees' Tariff Circular No. 6, Item 111 relating to Access Fees charged to Off-Port Parking Users violated 46 U.S.C. §§41102(c), 41106(2) and 41106(3). This Verified Complaint was assigned Docket Number 14-06, and is referred to hereafter as "the FMC Proceeding."
2. Defendants have filed an Answer to the FMC Proceeding, denying Plaintiff's claims in full and raising affirmative defenses thereto.
3. On or about June 26, 2014, Plaintiffs filed their Complaint in this Case, seeking, among other things, interim injunctive relief pending a final decision in the FMC Proceeding, pursuant to 46 U.S.C. §41306.
4. On August 1, 2014, Defendants filed an Answer in this Case, denying Plaintiff's claims in full and raising affirmative defenses thereto.
5. On July 15, 2014 Plaintiffs filed Plaintiff's Motion, seeking a Temporary Restraining Order and additional Relief. Plaintiffs Motion was initially set for hearing on July 31, 2014, and was subsequently re-set for hearing on August 5, 2014 by agreement of the parties.
6. Without admitting any of the claims or allegations asserted by the other parties, Plaintiffs and Defendants have agreed to the terms of this Agreed Interim Order set out below, in order to avoid the time and expense of a contested hearing on Plaintiff's Motion.
7. In order to avoid the uncertainties and substantial costs associated with continued litigation over the injunctive issues raised in the Motion, Plaintiffs and Defendants have agreed to the entry of this Agreed Interim Order with respect to the nature and extent of relief sought in the Motion. However, the parties further agree, and the Court so orders,

that the parties' agreement in submitting this Agreed Interim Order is: (1) without prejudice to any party's respective legal position, (2) expressly not a judicial admission of any fact or law issue, (3) to be construed as a compromise of a dispute over injunctive issues only, and (4) simply an effort to try and expeditiously resolve the relief requested in the Motion.

8. The Court finds that the terms of this Agreed Interim Order are appropriate and that it should be entered. Accordingly,

IT IS HEREBY ORDERED:

1. Plaintiffs are not required to pay the Board of Trustees monthly Access Fees at the rate of \$28.88 per parking space set forth in the May 19, 2014 Amendment to the Tariff unless and until there is a final decision on the merits in the FMC Proceeding and this proceeding validating or upholding same in Defendants' favor.
2. Plaintiffs Santa Fe Discount Cruise Parking Inc. d/b/a EZ Cruise Parking and Lighthouse Parking, Inc. are directed to pay the Board of Trustees' invoice dated July 2, 2014 in the amount of \$1,840.00 no later than August 8, 2014.
3. Plaintiffs are directed to pay the Board of Trustees monthly Access Fees pursuant to the former Tariff in effect prior to the May 19, 2014 Amendment on or before the first Monday of each calendar month following the Court's entry of this Agreed Interim Order pending final decision on the merits or resolution of Plaintiffs' claim(s) in the FMC Proceeding and this proceeding, in the following amounts:
 - a) Santa Fe Discount Cruise Parking, Inc. \$3,304.00
 - b) Lighthouse Parking, Inc. \$1,840.00
 - c) Sylvia Robledo, d/b/a 81st Dolphin \$1,080.00

4. Plaintiffs are directed to pay to the Clerk of the Court, and the Clerk of Court is hereby directed to accept and maintain three separate monthly deposits ("Monthly Deposits") from each respective Plaintiff on or before the first Monday of every calendar month following the Court's entry of this Agreed Interim Order pending final decision on the merits or resolution of Plaintiffs' claim(s) in the FMC Proceeding and this proceeding in the following amounts:
 - a) Santa Fe Discount Cruise Parking, Inc. \$8,623.44
 - b) Lighthouse Parking, Inc. \$4,802.40
 - c) Sylvia Robledo, d/b/a 81st Dolphin \$2,818.80
5. Consent to entry of this Agreed Interim Order shall not constitute a waiver by Defendants of any claim contesting subject matter jurisdiction in the FMC Proceeding and in this proceeding.
6. During the pendency of this Agreed Interim Order, Defendant Board of Trustees shall not deliver invoices to Plaintiffs. Defendant Board of Trustees may generate and maintain invoices to Plaintiffs for internal recordkeeping and bookkeeping purposes, but shall not mail or otherwise deliver invoices to Plaintiffs relating to the Access Fees forming the basis of the FMC Proceeding and this proceeding.
7. The Clerk of Court is hereby directed to maintain Plaintiffs' Monthly Deposits until such time as the total amounts in controversy have been resolved by final decision on the merits or resolution of Plaintiffs' claim(s) in the FMC Proceeding and this proceeding.

8. This Agreed Interim Order in no way constitutes an acknowledgment or admission by Defendants of any violation of any federal, state or local law, common law or local or municipal statute or regulation, or breach of any other legal obligation or duty of the parties to each other or any other person, or a waiver of sovereign or governmental immunity.
9. This Agreed Interim Order in no way constitutes an acknowledgment or admission by Plaintiffs as to the propriety, legality, reasonableness or fairness of monthly Access Fees set forth in the Tariff prior to the May 19, 2014 Amendment, paid or to be paid to The Board of Trustees pursuant to this Agreed Interim Order.
10. This Agreed Interim Order is binding and enforceable by citation of contempt of Court, and all proceedings relating to enforcement of or compliance with the terms of this Agreed Interim Order shall be brought in this same United States District Court for the Southern District of Texas, which Court shall retain continuing jurisdiction to enforce the terms of this Agreed Interim Order.
11. Plaintiffs and Defendants, acting by and through their legal counsel, acknowledge their understanding of the terms, nature and scope of this Agreed Interim Order, and represent their free, willing, and knowing acceptance of this Agreed Interim Order as resolving the current dispute between them except as provided herein.

SIGNED AND ENTERED this 5th of August 2014



Hon. Nancy K. Johnson
United States Magistrate Judge

Exhibit 2 – Amounts Paid into the Registry of the Court by 81st Dolphin

Sylvia Robledo dba 81st Dolphin	
Date Paid	Amount
9/2/2014	\$2,818.80
10/1/2014	\$2,818.80
11/3/2014	\$2,818.80
12/2/2014	\$2,818.80
1/5/2015	\$2,818.80
2/2/2015	\$2,818.80
3/2/2015	\$2,818.80
4/3/2015	\$2,818.80
5/4/2015	\$2,818.80
6/1/2015	\$2,818.80
6/29/2015	\$2,818.80
8/3/2015	\$2,818.80
9/1/2015	\$2,818.80
10/2/2015	\$2,818.80
10/30/2015	\$2,818.80
11/30/2015	\$2,818.80
12/30/2015	\$2,818.80
1/27/2016	\$2,818.80
2/29/2016	\$2,818.80
4/1/2016	\$2,818.80
4/28/2016	\$2,818.80
5/31/2016	\$2,818.80
7/1/2016	\$2,818.80
8/1/2016	\$2,818.80
9/1/2016	\$2,818.80
10/3/2016	\$2,818.80
10/31/2016	\$2,818.80
12/1/2016	\$2,818.80
1/3/2017	\$2,818.80
3/6/2017	\$2,818.80
4/3/2017	\$2,818.80

5/1/2017	\$2,818.80
6/6/2017	\$2,818.80
7/3/2017	\$2,818.80
9/5/2017	\$2,818.80
10/2/2017	\$2,818.80
11/6/2017	\$2,818.80
12/4/2017	\$2,818.80
1/3/2018	\$2,818.80
2/5/2018	\$2,818.80
3/5/2018	\$2,818.80
5/7/2018	\$2,818.80
7/2/2018	\$2,818.80
8/6/2018	\$2,818.80
9/4/2018	\$2,818.80
10/1/2018	\$2,818.80
11/5/2018	\$2,818.80
12/3/2018	\$2,818.80
1/7/2019	\$2,818.80
2/4/2019	\$2,818.80
3/7/2019	\$2,818.80
4/1/2019	\$2,818.80
5/6/2019	\$2,818.80
6/3/2019	\$2,818.80
7/1/2019	\$2,818.80
8/5/2019	\$2,818.80
9/3/2019	\$2,818.80
11/4/2019	\$2,818.80
12/2/2019	\$2,818.80
1/6/2020	\$2,818.80
2/3/2020	\$2,818.80
3/2/2020	\$2,818.80
Total	\$174,765.60

Exhibit 3 – Unpaid Balances on Invoices to 81st Dolphin for Cruise Terminal Access

Customer	Transaction Type	Date	NetSuite Document Number	Great Plains Document Number	Open Balance
81ST DOLPHIN	Invoice	11/3/2014	I-0001377	114453	\$5,540.00
	Invoice	12/11/2014	I-0001378	114789	\$7,120.00
	Invoice	1/9/2015	I-0001379	114976	\$6,060.00
	Invoice	2/5/2015	I-0001380	115260	\$6,720.00
	Invoice	3/3/2015	I-0001381	115538	\$5,960.00
	Invoice	4/2/2015	I-0001382	115758	\$8,020.00
	Invoice	5/4/2015	I-0001383	116080	\$8,200.00
	Invoice	6/2/2015	I-0001384	116379	\$9,380.00
	Invoice	7/6/2015	I-0001385	116671	\$9,140.00
	Invoice	7/31/2015	I-0001386	116943	\$9,320.00
	Invoice	9/2/2015	I-0001387	117216	\$12,520.00
	Invoice	10/1/2015	I-0001388	117547	\$10,340.00
	Invoice	11/2/2015	I-0001389	117751	\$8,040.00
	Invoice	12/3/2015	I-0001390	118095	\$9,020.00
	Invoice	1/5/2016	I-0001391	118337	\$5,900.00
	Invoice	2/3/2016	I-0001392	118665	\$3,520.00
	Invoice	3/3/2016	I-0001393	118979	\$3,380.00
	Invoice	4/1/2016	I-0001394	119161	\$4,700.00
	Invoice	5/4/2016	I-0001395	119564	\$4,460.00
	Invoice	6/1/2016	I-0001396	119771	\$6,460.00
	Invoice	6/30/2016	I-0001397	120052	\$6,100.00
	Invoice	8/2/2016	I-0001398	120339	\$6,100.00
	Invoice	9/1/2016	I-0001399	120685	\$5,440.00
	Invoice	10/3/2016	I-0001400	121013	\$4,920.00
	Invoice	11/3/2016	I-0001401	121340	\$5,060.00
	Invoice	12/2/2016	I-0001402	121621	\$4,900.00
	Invoice	1/3/2017	I-0001403	121859	\$3,820.00
	Invoice	2/20/2017	I-0001404	122168	\$4,480.00
	Invoice	2/28/2017	I-0001405	122430	\$2,760.00
	Invoice	3/31/2017	I-0001406	122702	\$3,180.00
	Invoice	5/2/2017	I-0001407	123005	\$3,560.00
	Invoice	6/2/2017	I-0001408	123261	\$4,220.00
	Invoice	7/3/2017	I-0001409	123576	\$4,580.00
	Invoice	7/31/2017	I-0001410	123855	\$5,640.00
	Invoice	9/5/2017	I-0001411	124159	\$3,980.00
	Invoice	10/2/2017	I-0001412	124430	\$4,740.00
	Invoice	11/1/2017	I-0001413	124711	\$4,620.00
	Invoice	12/3/2017	I-0001414	125004	\$5,020.00
	Invoice	1/2/2018	I-0001415	125253	\$5,660.00
	Invoice	2/5/2018	I-0001416	125585	\$4,060.00
	Invoice	3/3/2018	I-0001417	125878	\$4,280.00
	Invoice	4/2/2018	I-0001418	126181	\$5,220.00
	Invoice	5/1/2018	I-0001419	126463	\$4,220.00
	Invoice	6/1/2018	I-0001420	126777	\$3,500.00
	Invoice	7/6/2018	I-0001421	127197	\$3,780.00
	Invoice	8/8/2018	I-0001422	127486	\$4,240.00
	Invoice	10/10/2018	I-0001423	128007	\$3,800.00
	Invoice	10/10/2018	I-0001424	128008	\$4,280.00
	Invoice	11/8/2018	I-0001425	128398	\$3,680.00
	Invoice	12/10/2018	I-0001426	128644	\$2,760.00
	Invoice	1/2/2019	I-0001427	128760	\$4,280.00
	Invoice	1/31/2019	I-0002341		\$3,300.00

Invoice	2/28/2019	I-0002546	\$4,350.00
Invoice	3/29/2019	I-0002813	\$3,280.00
Invoice	4/30/2019	I-0003149	\$3,530.00
Invoice	5/31/2019	I-0003473	\$6,210.00
Invoice	6/30/2019	I-0003839	\$7,100.00
Invoice	8/13/2019	I-0004284	\$4,640.00
Invoice	8/31/2019	I-0004456	\$5,240.00
Invoice	8/31/2019	I-0006578	\$6,200.00
Invoice	8/31/2019	I-0006585	\$6,200.00
Invoice	9/30/2019	I-0004795	\$5,540.00
Invoice	10/31/2019	I-0005106	\$4,680.00
Invoice	11/30/2019	I-0005370	\$6,900.00
Invoice	12/31/2019	I-0005661	\$6,780.00
Invoice	1/31/2020	I-0005983	\$6,580.00
Invoice	2/29/2020	I-0006313	\$6,200.00
Invoice	3/31/2020	I-0006606	\$3,340.00
Total - 81ST DOLPHIN			\$370,750.00

Note: Per the Agreed Interim Order set forth in Exhibit 1, Respondent was not permitted to formally invoice these amounts while the order was in effect but was allowed to maintain records with regard to the amounts owed by 81st Dolphin. There is no dispute that 81st Dolphin owes Respondent more than it would be entitled to receive in reparations.